diana, to make reimbursement, either in the full amount, or in part, of a claim arising out of prepayment of transportation costs by a commercial concern under a procurement instrument which provides directly or indirectly for shipment at the expense of the United States. Such reimbursement may be made by the disbursing officer designated to make payment under the procurement instrument in question to the extent of the constructive transportation cost for shipment on Government bill of lading, which cost may be ascertained from the Finance Center, U. S. Army, Transportation Division, Indianapolis 49, Indiana. In doubtful cases, such claims may be prepared for transmission to the General Accounting Office and submitted to the Chief of Finance, Washington 25, D. C., Attention: Receipts and Disbursements Division, for consideration. In no event will the disbursing officer forward, or instruct a vendor to forward, such claim to the Finance Center, U. S. Army, Transportation Division, Indianapolis 49, Indiana, for settlement.

3. In § 535.33, paragraph (d) is revised as follows:

§ 535.33 *Overpayments.* * * *

(d) Where it is determined that overpayments have been made to a transportation company as a result of overcharges made by such transportation company to a cost-plus-a-fixed-fee contractor who, in turn, has been reimbursed by the Government, the General Accounting Office will send notices of such overpayments to the disbursing officer of the Finance Center, U. S. Army, Transportation Division, Indianapolis 49, Indiana, who will make the deductions from subsequent carrier bills and advise the sender in the General Accounting Office and the carrier of the deductions made. From that point on, the matter of correctness of the original deductions will be a matter for settlement between the carrier involved and the General Accounting Office. All questions received from carriers as to the correctness of the original deductions should be referred to the Freight Transportation Section, Claims Division, General Accounting Office, Washington 25, D. C.

[Cl, SR 35-3260-1, February 8, 1954] (R. S. 161; 5 U. S. C. 22. Interpret or apply 54 Stat. 954 as amended; 49 U. S. C. 65)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 54-2184; Filed, Mar. 26, 1954; 8:49 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 207—NAVIGATION REGULATIONS

MISCELLANEOUS AMENDMENTS

Pursuant to the provisions of section 7 of the River and Harbor Act of August 8, 1917 (40 Stat. 266; 33 U. S. C. 1), § 207.180 governing the use, administration, and navigation of all waterways tributary to the Gulf of Mexico, except the Mississippi River, its tributaries and outlets, from St. Marks, Florida, to the Rio Grande, Texas, both inclusive, and the Intracoastal Waterway from Apalachee Bay, Fla., to Brownsville, Texas, is hereby amended to increase the maximum allowable length of all tows to 1,000 feet exclusive of the towing vessel, as follows:

§ 207.180 *All waterways tributary to the Gulf of Mexico (except the Mississippi River, its tributaries and outlets) from St. Marks, Fla., to the Rio Grande; use, administration, and navigation.* (a) The regulations in this section shall apply to:

(1) *Waterways.* All navigable waters of the United States which are tributary to or connected by other waterways with the Gulf of Mexico, except the Mississippi River, its tributaries and outlets, between St. Marks, Fla., and the Rio Grande, Texas, both inclusive, and the Intracoastal Waterway from Apalachee Bay, Fla., to Brownsville, Texas.

* * * * *

(e) *Waterways.* * * *

(4) *Size, assembly, and handling of tows.* On waterways 150 feet wide or less, tows will not be allowed which are longer than 1,000 feet, exclusive of the towing vessel and hawser, or wider than one-half the bottom width of the channel or 55 feet, whichever width is less, except on waterways exempted by the District Engineer or on other waterways by special permission of the District Engineer.

(i) All vessels drawing tows not equipped with rudders in restricted channels and land cuts shall use two towlines, or a bridle on one towline, shortened to the greatest possible extent so as to have maximum control at all times. The various parts of a tow shall be securely assembled with the individual units connected by lines as short as practicable. In open water, the towlines and fastenings between barges may be lengthened so as to accommodate the wave surge. In the case of lengthy or cumbersome tows, or tows in restricted channels, the District Engineer may require that tows be broken up, and may require the installation of a rudder or other approved steering device on the tow in order to avoid obstructing navigation or damaging the property of others. Pushing barges with towing vessel astern, towing barges with towing vessel alongside, or pushing and pulling barges with units of the tow made up both ahead and astern of the towing vessel is permissible provided that adequate power is employed to keep the tow under full control at all times.

(ii) No tow shall be drawn by a vessel that has insufficient power or crew to permit ready maneuverability and safe handling.

(iii) No vessel or tow shall navigate through a drawbridge until the movable span is fully opened.

* * * * *

(h) *Marine accidents.* Masters, mates, pilots, owners, or other persons using the waterways to which the regulations in this section apply shall report to the District Engineer or his authorized representative by the most expeditious means available all marine accidents, such as fire, collision, sinking, or stranding, where there is possible obstruction of the channel or interference with navigation, furnishing a clear statement as to the name, address, and ownership of the vessel or vessels involved, the time and place, and the action taken. In all cases, the owner of a sunken vessel shall take immediate steps to mark the wreck properly.

* * * * *

[Regs., Mar. 10, 1954, 800.211 (Gulf Intracoastal Waterways)—ENGWO] (40 Stat. 266; 33 U. S. C. 1)

[SEAL] WM. E. BERGIN,
Major General, U. S. A.,
The Adjutant General.

[F. R. Doc. 54-2183; Filed, Mar. 26, 1954; 8:48 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 946]

ARKANSAS

PARTIAL REVOCATION OF EXECUTIVE ORDER NO. 8591 OF NOVEMBER 8, 1940

By virtue of the authority vested in the President by the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 8591 of November 8, 1940, withdrawing certain public lands in Arkansas in connection with the construction of the Norfolk Dam and Reservoir under the supervision of the War Department, is hereby revoked so far as it affects the following-described lands:

FIFTH PRINCIPAL MERIDIAN

T. 20 N., R. 12 W.,
Sec. 8, NE¼NE¼, N½SE¼NE¼.

The area described contains 60 acres.

The lands are included in power site classification No. 33, Arkansas No. 2, by departmental order of April 29, 1922. The W½NE¼NE¼ is included in Federal Power Project No. 654 by application filed June 6, 1930.

ORME LEWIS,
Assistant Secretary of the Interior.

MARCH 23, 1954.

[F. R. Doc. 54-2161; Filed, Mar. 26, 1954; 8:45 a. m.]